

11.—(1) This Act shall extend to the Isle of Man and the Channel Islands. Provisions as to Isle of Man and Channel Islands.

(2) References in this Act to the United Kingdom, except where the reference is to His Majesty's Government in the United Kingdom, shall be construed as including references to the Isle of Man and the Channel Islands.

(3) References to the Trading with the Enemy Act, 1939, shall include references to that Act as it extends to the Isle of Man and the Channel Islands.

(4) Section two of this Act shall, in its application to the Isle of Man and the Channel Islands, have effect with such exceptions, adaptations and modifications (if any) as may be specified by Order in Council.

12. This Act may be cited as the Distribution of German Enemy Property Act, 1949. Short title.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Petty Sessions (Ireland) Act, 1851	14 & 15 Vict. c. 93.
Trading with the Enemy Act, 1939	2 & 3 Geo. 6. c. 89.
Palestine Act, 1948	11 & 12 Geo. 6. c. 27.

CHAPTER 86

Electoral Registers Act, 1949

ARRANGEMENT OF SECTIONS

Section

1. Abolition of autumn registers of parliamentary and local government electors.
2. Voting rights of certain persons coming of age during currency of register.
3. Consequential amendments with respect to jurors books.
4. Power to make consequential amendments of other Acts.
5. Short title, construction, citation and repeal.

SCHEDULES:

First Schedule—Amendments of the Representation of the People Act, 1949, consequential on section two of this Act.

Second Schedule—Consequential Amendments of the Juries Act, 1922.

Third Schedule—Enactments Repealed.

An Act to abolish autumn registers of parliamentary and local government electors, and for purposes connected therewith. [16th December 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Abolition
of autumn
registers of
parliamentary
and local
government
electors.

1.—(1) In Great Britain, registers of parliamentary and local government electors, and in Northern Ireland, registers of parliamentary electors, shall be prepared and published once a year instead of twice a year.

(2) In Great Britain, registers of parliamentary and local government electors shall be published not later than the fifteenth day of March, and registers published in any year shall be used for parliamentary and local government elections at which the date fixed for the poll falls within the period of twelve months beginning with the sixteenth day of March in that year.

(3) In Northern Ireland, registers of parliamentary electors shall be published not later than the first day of April, and registers published in any year shall be used for parliamentary elections at which the date fixed for the poll falls within the period of twelve months beginning with the second day of April in that year.

(4) In any year—

(a) the twentieth day of November shall, as regards England and Wales, be the qualifying date for a parliamentary or local government election at which the date fixed for the poll falls within the period of twelve months beginning with the sixteenth day of March in the next following year;

(b) the first day of December shall, as regards Scotland, be the qualifying date for any such election as aforesaid; and

(c) the thirty-first day of October shall, as regards Northern Ireland, be the qualifying date for a parliamentary election at which the date fixed for the poll falls within the period of twelve months beginning with the second day of April in the next following year.

(5) The Secretary of State shall have power, exercisable by statutory instrument which shall not come into force unless or until it is approved by resolution of each House of Parliament, to make regulations altering the interval in Northern Ireland between the qualifying date and the date of publication of the registers of parliamentary electors by changing either date, and any such regulations may make such consequential provisions

(including the modification of any enactment contained in this or any other Act) as may appear to the Secretary of State to be necessary.

(6) If any part of a register is not published within the time required by this section, then until the day following that on which it is published the corresponding part of the previous register (whether prepared before or after the passing of this Act) shall continue in use; and where any part of the register used at an election is a part continued in force by this subsection, the Representation of the People Acts (including this Act) shall have effect in relation to the election and the area to which that part relates as if the qualifying date by reference to which that part was prepared were the qualifying date for the election.

(7) This section shall have effect with respect to registers to be published in the year nineteen hundred and fifty and subsequent years and elections for which registers to be so published are to be used.

2.—(1) A person who is not of full age on the qualifying date for a parliamentary or local government election in a constituency or electoral area in Great Britain, being an election at which the date fixed for the poll falls within the period beginning with the second day of October in any year and ending with the next following fifteenth day of March, shall, if he is of full age on the fifteenth day of June in that year and is otherwise entitled so to do, be entitled to vote as an elector at that election, and the reference in subsection (1) of section eight of the principal Act (which relates to registration rights) to persons who may be entitled to vote as electors at parliamentary elections for which any register is to be used, and the reference in subsection (2) of that section to persons who may be entitled to vote as electors at local government elections for which any register is to be used shall, in the application of those subsections to Great Britain, be construed accordingly.

Voting rights of certain persons coming of age during currency of register.

(2) A person who is not of full age on the qualifying date for a parliamentary election in a constituency in Northern Ireland, being an election at which the date fixed for the poll falls within the period beginning with the second day of October in any year and ending with the next following first day of April, shall, if he is of full age on the thirtieth day of April in that year and is otherwise entitled so to do, be entitled to vote as an elector at that election, and the reference in subsection (1) of section eight of the principal Act to persons who may be entitled to vote as electors at parliamentary elections for which any register is to be used shall, in the application of that subsection to Northern Ireland, be construed accordingly.

(3) Where, by virtue of subsection (6) of section one of this Act, any part of the register to be used at such a parliamentary or local government election as is mentioned in subsection (1) of

this section falls to be used at an election at which the date fixed for the poll falls after the expiration of the period so mentioned, the said subsection (1) shall, as regards a person registered by virtue thereof in that part of the register, apply in relation to the election as it applies in relation to an election at which the date fixed for the poll falls within that period; and where, by virtue of the said subsection (6), any part of the register to be used at such a parliamentary election as is mentioned in subsection (2) of this section falls to be used at an election at which the date fixed for the poll falls after the period so mentioned, the said subsection (2) shall, as regards a person registered by virtue thereof in that part of the register, apply in relation to the election as it applies in relation to an election at which the date fixed for the poll falls within that period.

(4) The provisions of the First Schedule to this Act shall have effect for the purpose of making in the principal Act amendments consequential on the foregoing provisions of this section.

(5) This section and the First Schedule to this Act shall have effect with respect to elections for which registers to be published in the year nineteen hundred and fifty-one and subsequent years are to be used and with respect to such registers and forms to be used for the purposes of such elections.

(6) In this section and in the First Schedule to this Act the expression "the principal Act" means the Representation of the People Act, 1949.

Consequential
amendments
with respect to
jurors books.
12 & 13 Geo. 5,
c. 11.

3.—(1) The provisions, specified in the first column of the Second Schedule to this Act, of the Juries Act, 1922 (which provides for the preparation of jurors books by reference to electors lists for autumn registers) shall have effect subject to the amendments respectively specified in relation thereto in the second column of that Schedule, being amendments consequential on the provisions of section one of this Act.

(2) Nothing in the foregoing subsection shall affect the preparation and delivery of jurors books in the year nineteen hundred and forty-nine, but jurors books prepared in that year under the said Act of 1922 shall be used only for the period beginning with the first day of January, nineteen hundred and fifty, and ending with the fourteenth day of August in that year.

Power to make
consequential
amendments
of other Acts.

4.—(1) The Secretary of State may by order amend any other Act (whether public general or local and whether passed before, or at the same time as, the passing of this Act) to such extent as appears to him requisite in consequence of the passing of this Act.

(2) An order under this section may be varied or revoked by a subsequent order thereunder.

(3) The powers conferred by this section shall be exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

5.—(1) This Act may be cited as the Electoral Registers Act, 1949. Short title,
construction,
citation and
repeal.

(2) This Act shall be construed as one with, and included amongst the Acts which may be cited as, the Representation of the People Acts.

(3) The enactments mentioned in the first and second columns of the Third Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule, except as respects elections at which the date fixed for the poll is before the sixteenth day of March, nineteen hundred and fifty, in Great Britain, or the second day of April, nineteen hundred and fifty, in Northern Ireland, and the registers to be used at any such elections.

SCHEDULES

FIRST SCHEDULE

Section 2.

AMENDMENTS OF THE REPRESENTATION OF THE PEOPLE ACT, 1949, CONSEQUENTIAL ON SECTION TWO OF THIS ACT

1. Regulations made under section forty-two of the principal Act may contain provisions as to marking registers of parliamentary and local government electors in Great Britain so as to distinguish persons entitled to vote by virtue of subsection (1) of section two of this Act, and as to marking registers of parliamentary electors in Northern Ireland so as to distinguish persons entitled to vote by virtue of subsection (2) of that section, and section forty-five of the principal Act (which relates to registration appeals) shall have effect as if the reference in paragraph (c) of subsection (1) thereof to a mark indicating that a person registered is, or is not, registered as a service voter or as a non-resident included a reference to a mark indicating that a person registered is, or is not, entitled to vote by virtue of subsection (1) or (2) of section two of this Act.

2. A person falling within subsection (1) or (2) of section two of this Act shall not be guilty of an offence under paragraph (a) of subsection (1) of section forty-eight of the principal Act by reason only of his applying, while not of full age, to be treated as an absent voter, and shall not be guilty of an offence under paragraph (b) of that subsection by reason only of his applying, while not of full age, for the appointment of a proxy.

3. For the purposes of rules 8 and 29 of the parliamentary elections rules (which relate respectively to the subscription of the nomination papers of candidates at parliamentary elections and the issue of

1ST SCH.
—cont.

official poll cards for the purposes of such elections), the expression “elector”,—

- (a) in relation to a parliamentary election in a constituency in Great Britain, being an election at which the date fixed for the poll falls within the period beginning with the sixteenth day of March in any year and ending with the first day of October in that year, shall not include a person who, by virtue of subsection (1) of section two of this Act, is registered as a parliamentary elector in that constituency in the register to be used at that election or who, by virtue of that subsection, appears from the electors lists for that register to be entitled to be so registered;
- (b) in relation to a parliamentary election in a constituency in Northern Ireland, being an election at which the date fixed for the poll falls within the period beginning with the second day of April in any year and ending with the first day of October in that year, shall not include a person who, by virtue of subsection (2) of section two of this Act, is registered as a parliamentary elector in that constituency in the register to be used at that election or who, by virtue of that subsection, appears from the electors lists for that register to be entitled to be so registered;

and for the purposes of rule 6 of the local elections rules in the Second Schedule to the principal Act (which relates to the subscription of the nomination papers of candidates at local government elections in England and Wales) the expression “elector for the electoral area”, and for the purposes of rule 5 of the local elections rules in the Third Schedule to that Act (which relates to the subscription of the nomination papers of candidates at local government elections in Scotland) the expression “local government elector”, shall not, in relation to a local government election in an electoral area at which the date fixed for the poll falls within the period mentioned in sub-paragraph (a) of this paragraph, include a person who, by virtue of subsection (1) of section two of this Act, is registered as a local government elector for that area in the register to be used at the election or who, by virtue of that subsection, appears from the electors lists for that register to be entitled to be so registered.

4. Notwithstanding anything in rule 38 of the parliamentary elections rules, rule 33 of the local elections rules in the Second Schedule to the principal Act or rule 31 of the local elections rules in the Third Schedule to that Act, in the case of—

- (a) a parliamentary or local government election in a constituency or electoral area in Great Britain, being an election at which the date fixed for the poll falls within the period beginning with the sixteenth day of March in any year and ending with the first day of October in that year; and
- (b) a parliamentary election in a constituency in Northern Ireland, being an election at which the date fixed for the poll falls within the period beginning with the second day of April in any year and ending with the first day of October in that year;

no ballot paper shall be delivered to a person who, by virtue of section two of this Act, is registered in the register to be used at

the election or to his proxy, except where the part of the register in which his name appears is being used at the election by virtue of subsection (6) of section one of this Act:

Provided that this paragraph shall not apply to a person applying for a ballot paper as proxy of a person entitled, apart from section two of this Act, to vote.

5. The two last foregoing paragraphs shall,—

- (a) so far as they relate to local government elections in England and Wales, apply also for the purposes of the local elections rules in the Second Schedule to the principal Act in their application to the election of district and parish councillors in England and Wales, save in so far as it may be provided to the contrary by district election rules or parish election rules made under subsection (1) of section twenty-nine of that Act; and
- (b) so far as they relate to the local government elections in Scotland, apply also for the purposes of the local elections rules in the Third Schedule to that Act in their application to the election of elected district councillors in Scotland.

6. The forms contained in the Appendices to the Second and Third Schedules to the principal Act shall be adapted so far as necessary to accord with the foregoing provisions of this Schedule.

SECOND SCHEDULE

Section 3.

CONSEQUENTIAL AMENDMENTS OF THE JURIES ACT, 1922

Provisions amended and subject matter thereof

Amendments

Section one ...
(Method of preparing
jurors books).

In subsection (2), the word "autumn" shall be omitted.

In subsection (3), for the words "on the last day of the qualifying period for registration in the autumn register" there shall be substituted the words "on the qualifying date for elections for which the register is to be used".

In subsection (4), the word "autumn" shall be omitted.

In subsection (7), the word "autumn" shall be omitted, for the words "the first day of December" there shall be substituted the words "the first day of July", and for the words "the year beginning the first day of January next following" there shall be substituted the words "the period of twelve months beginning with the fifteenth day of August next following".

In subsection (8), for the words "and every sheriff on quitting office shall, within ten days next after the succeeding sheriff enters on his office, deliver to him the jurors book for the current year and all other like books prepared within the

1ST SCH.
—cont.

2ND SCH.
—cont.

Provisions amended and
subject matter thereof

Section one—cont. ...
(Method of preparing
jurors books—cont.).

Amendments

four years next preceding and then in his possession”, there shall be substituted the words “ and every sheriff shall, within ten days next after he quits office, deliver to his successor any jurors book in his possession which was prepared in the calendar year in which he quits office or relates to any period falling wholly or partly within the period of four years ending with the day on which he quits office ”.

In subsection (9), the word “ autumn ” shall be omitted.

Section two
(Persons included in
jurors book liable to
serve notwithstanding
disqualification or
right to exemption).

In subsection (2), the words “ in the case of the autumn register ” shall be omitted.

Section six
(Power to make Orders
in Council).

In subsection (1), paragraph (b) (which empowers the making of provision for requiring and authorising the registration officer to mark provisionally as jurors in the electors lists for the spring register in any year the names of any persons included therein who are qualified and liable to serve as jurors) shall be omitted.

Section 5.

THIRD SCHEDULE
ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
11 & 12 Geo. 6. c. 65.	The Representation of the People Act, 1948.	In section one, subsection (3). In section five, in subsection (1), the words from “ which, except in Northern Ireland, shall be published not later than the fifteenth day of March,” to the end of the subsection, and subsections (2) and (3). In section twenty-one, subsection (4). In section twenty-three, subsection (3), and, in subsection (7), the words “ (3) and.”
12 & 13 Geo. 6. c. 68.	The Representation of the People Act, 1949.	Section three. In section seven, in subsection (1), the words “ the spring and autumn of,” and subsection (3). The First Schedule.